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# California works to get food to residents during SNAP battle

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(The Center Square) - In the latest move to fund food benefits for low-income Californians, Attorney General Rob Bonta filed an amicus brief in the U.S. Court of Appeals for the First Circuit.

He asked the court to reject the Trump administration's request to appeal a previous court decision requiring the federal government to fund food benefits.

The Boston-based court proceeded to deny the administration's request for a stay on the order by the U.S. District Court for Rhode Island. The Trump administration later said it will fully fund Supplemental Nutrition Assistance Program benefits while its appeal plays out. The administration is seeking a stay from the U.S. Supreme Court, according to media reports.

That's how everything unfolded Friday after Agriculture Secretary Brooke Rollins said her department asked the 1st Circuit Court to pause the Rhode Island-based district court's ruling that the department use $6 billion of emergency contingency funding to disburse SNAP benefits.

The debate over SNAP funding was met with criticism by those who say that the USDA's refusal to pay for full SNAP benefits was wrong. However, some Republican legislators in California pushed back.

"I grew up on EBT (electronic benefits transfer). I grew up on WIC. I grew up on CalFresh," Assemblymember David Tangipa, R-Fresno, told The Center Square. "It was not like what it is right now when I was on it. There's a lot of waste that is happening on EBT."

According to Tangipa, California's version of SNAP, CalFresh, has a 13% fraud and error rate, meaning that one out of 10 applications on SNAP/EBT is fraud or inaccurate. Reducing fraud in the program will ensure that government spending is brought down and resources provided only to the ones truly in need, he added.

"Under the Big Beautiful Bill, they have to get that under 5%," Tangipa told The Center Square. "So under 5% to make sure the money is going to the right people who deserve it, the ones who need it and the ones who have been caught in that social safety net."

On Thursday, a ruling made in U.S. District Court in Massachusetts that the Trump administration use emergency contingency funds to pay SNAP benefits was bolstered by a separate decision from a judge in the U.S. District Court of Rhode Island, who said that the U.S. Department of Agriculture had to fund full SNAP benefits by Friday. California officials both celebrated that victory in court and criticized the USDA, according to a Nov. 6 press release issued from California Attorney General Rob Bonta's office.

"Carrying out USDA's directive to award reduced benefits has been nothing short of an administrative nightmare in many states," said Bonta in the press release. "We continue to believe that the Trump administration is legally required to pay full November SNAP benefits, which would also be far easier to get out the door. And it's great news that they have now been ordered to do precisely that."

However, Bonta added in the press release, "Instead of simply focusing on getting vital food assistance to millions of people, however, USDA has appealed this latest order. It's unconscionable. Californians, and people across this country, can't afford any more delays or excuses."

Also on Thursday, the deputy secretary of the U.S. Department of Agriculture, Steven Vaden, said he is attempting

to root out fraud in the SNAP program, stating that the system doesn't require thorough enough income and asset evaluations.

On Monday, the U.S. Department of Agriculture said it could only pay $4.6 billion toward November's SNAP disbursements. Department officials announced the same day that it wouldn't use other contingency funds to pay for those benefits. However, President Donald Trump wrote on social media on Tuesday that no money would go to paying for SNAP benefits until the federal government reopens, stating that congressional Democrats would have to vote to open the federal government before SNAP would continue to receive funding.

Congressional Democrats voted that same day for the 14th time not to pass a continuing resolution that would fund the federal government through the end of 2025 - making the shutdown the longest in U.S. history. Friday was its 38th day.

The crux of the shutdown is centered on Democrats attempting to include a continuation of pandemic-era federal subsidies to offset the cost of health insurance premiums, which are set to expire at the end of the year. Republicans in Congress would not include that provision in the federal funding measure, insisting that debate over the issue be held after passage of the funding resolution.

Judge Indira Talwani of the U.S. District Court of Massachusetts issued a ruling on Oct. 31 ordering the Trump administration to use those emergency funds to pay for SNAP benefits. Talwani determined $6 billion was legally available to continue funding SNAP disbursements to beneficiaries, despite the argument the Trump Administration adopted that the U.S. Department of Agriculture could not legally use the contingency funding to pay for SNAP benefits.

The SNAP program costs $8.6 billion a month nationwide, according to Talwani's Oct. 31 ruling.

Bonta, along with the state attorneys general of 22 other states, filed a lawsuit in the U.S. District Court in Massachusetts on Oct. 28 to force the U.S. Department of Agriculture, which oversees and funds the SNAP program nationwide, to use emergency contingency funding to pay for SNAP beneficiaries' food benefits. Bonta said in an Oct. 30 press conference, held at the Los Angeles Regional Food Bank, that he was hoping for an order to come from the judge in that case before Nov. 1, when money for SNAP and CalFresh would run out.

Many other states experienced their own difficulties over losing SNAP benefits in recent weeks. Washington State, Ohio, Pennsylvania, Michigan, North Carolina, Louisiana and Colorado have all dealt with trying to fill the gap to meet the needs of residents in those states who also rely on SNAP, formerly known as food stamps.

The ongoing federal shutdown has affected those who rely on SNAP benefits across the country. The federally-funded program provides food benefits to 42 million Americans every month, and about 5.5 million people in California, according to previous Center Square reporting. Money for the program ran out on Nov. 1.

In California, SNAP is known as CalFresh.

According to a report from the California Department of Social Services, approximately $1.1 billion in federal money is distributed in CalFresh benefits each month to eligible Californians.

"Withholding these benefits will potentially take food off the table for 42 million Americans who use SNAP and require assistance to feed themselves and their families," wrote Marcia Rabinoff, an account manager for Unbendable Media, in an email to The Center Square. "The administration's freeze of SNAP funds also disproportionately harms families in rural areas, where access to grocery stores and social services is already limited, further deepening food insecurity and economic hardship."

A moveon.org petition had garnered 73,865 signatures as of Friday afternoon. The goal of the petition is to get 75,000 signatures in an effort to restore funding to SNAP.

What legislators and members of Congress are doing

California legislators have stepped up efforts to ensure their constituents get access to food. Assembly Speaker Robert Rivas, D-Salinas; Assemblymember Mark Gonzalez, R-Indio; Assemblymember Jesse Gabriel, D-Encino and U.S. Rep. Jimmy Gomez, D-Los Angeles, along with leaders of the YMCA of Metropolitan Los Angeles, visited a food distribution center operated by Weingart East Los Angeles YMCA, according to a Nov. 5 press release from Rivas' office.

"Trump is ignoring a court order and literally taking food off the table from millions, denying groceries to kids and seniors, and leaving families at the mercy of his Republican shutdown," Rivas said in that press release. "It's un-American. We are doing everything possible to fill in this awful gap so that families don't go hungry during the holidays."

Rivas' office also said in the press release that the California legislature allocated tens of millions of dollars this year for food banks throughout the state, and that state officials are fast-tracking $80 million in food assistance to families in the Golden State ahead of the holidays.

"Hunger doesn't care who you voted for," said Assemblyman Mark Gonzalez, D-Los Angeles, in a Nov. 5 press conference at the Weingart East Los Angeles YMCA food distribution center. "Hunger doesn't care or wait for a budget deal. Hunger doesn't take sides, it takes lives."

Besides Gomez, other members of California's congressional delegation have also visited organizations in their districts. U.S. Rep. Laura Friedman, D-Burbank, stopped by the nonprofit My Friend's Place, which provides critical resources and services to young adults.

"Programs like My Friend's Place are a lifeline," said Friedman in a Nov. 7 press release. "I'm forever grateful for their work and will continue fighting in Congress to get them the resources they need. That includes protecting access to critical nutrition assistance programs like SNAP which the Trump Administration is using as a political hostage."

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